

Court No. - 21

Case :- WRIT - C No. - 24474 of 2012

Petitioner :- M/S Shree Radhey Radhey Ispat (Pvt.) Ltd.

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Anubhav Shukla

Hon'ble R.K. Agrawal,J.

Hon'ble Mushaffey Ahmad,J.

Sri Anubhav Shukla to obtain instructions. Put up as fresh on 29th May, 2012.

Order Date :- 17.5.2012

mt

Court No. - 21

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Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

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Respondent Counsel :- Anubhav Shukla

Hon'ble R.K. Agrawal,J.

Hon'ble Mushaffey Ahmad,J.

On the request of Sri Anubhav Shukla put up day after tomorrow as fresh.

Order Date :- 29.5.2012

mt

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Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Anubhav Shukla

Hon'ble R.K. Agrawal,J.

Hon'ble Mushaffey Ahmad,J.

Shri Mahboob Ali, learned counsel for the respondents prays for and is granted a week's time to obtain instructions.

Put up as fresh on 10.07.2012.

Order Date :- 2.7.2012

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Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Anubhav Shukla, Mahboob Ali

Hon'ble Vineet Saran, J.

Hon'ble Mushaffey Ahmad, J.

Heard learned counsel for the petitioner as well as Sri Mahboob Ahmad, learned counsel for the respondents. With the consent of the learned counsel for the parties, this petition is being disposed of finally without calling counter affidavit.

Petitioner is running an industry and has sanctioned the power load of 1500 KVA . On 10.7.2009, the petitioner filed an application for enhancement of the contracted load to 2500 KVA.

The grievance of the petitioner is that despite the Superintending Engineer, Electricity Distribution Division , Purvanchal Vidyut Vitran Nigam, Ltd. Fatehpur having given his technical feasibility report on 22.4.2012, no order has yet been passed on the application of the petitioner for enhancement of the power load. It is contended by the learned counsel for the petitioner that under the Electricity Supply Code, 2005 clause-4.43 which deals with enhancement of load for cases other than the public lighting, the decision should be within 7 days from the date of acceptance of application, if the metering and related apparatus do not need any change or otherwise 30 days, subject to deposit of additional security and system loading charges.

It is contended by the learned counsel for the petitioner that although more than two years have passed yet no decision

has been taken on the application of the petitioner for enhancement of the load thereby giving immense hardship and loss to the petitioner.

Considering the facts and circumstances of the case, we dispose of the writ petition with a direction that necessary orders on the application of the petitioner dated 10.7.2009 for enhancement of the load from 1500 KVA to 2500KVA be passed by the respondent no. 2 i.e. Chief Engineer, Purvanchal Vidyut Vitran Nigam, Ltd. Allahabad as expeditiously as possible, but not later than 30 days from the date of filing of the certified copy of this order. It is made clear that this Court has not examined the merits of the claim of the petitioner which shall be looked into by the respondent no. 2 while deciding the said application.

Order Date :- 17.7.2012
n.u.

(Mushaffey Ahmad, J) (Vineet Saran, J)